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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

HANNA MARS	)	Case No.: 22FL003144
	)	
Plaintiff(s),	)	KEY STATEMENTS &
	)	MATERIAL FACTS
vs.	)	
	)	
KOSTIANTYN MARS,	)	DATE: February 7, 2024
	)	DEPT: 79
	)	
Defendant(s).	)	

**KEY STATEMENTS & MATERIAL FACTS
FROM TRANSCRIPT OF HEARING BEFORE THE JUDGE STEPHEN LOWNEY
(February 7, 2024)**

The following statements and exchanges from the official transcript and audio recording of the February 7, 2024 hearing demonstrate Judge Stephen Lowney's extortion of financial assets, vehicle title documents, and the minor child's identifying documents, coupled with explicit and implicit threats of adverse judicial action, including declaration as a vexatious litigant, denial of access to the courts, contempt proceedings, and further malicious prosecution. Each entry provides the exact location and the verbatim text of the statements in the transcript. All excerpts are presented with sufficient surrounding context to establish the coercive nature of the exchanges establishing patterns of racketeering under color of law .

1. Coercion to Surrender 401(k) Retirement Funds and Insistence on Court-Appointed QDRO Expert Known For Financial Fraud

Judge Stephen Lowney required Petitioner to surrender control of his 401(k) account and directed that any division of the account would be handled exclusively through a court-appointed expert, Elizabeth Strasen, known for financial fraud, rather than through the standard Qualified Domestic Relations Order (QDRO) process available directly from the plan provider. Judge Stephen Lowney rejected Petitioner's proposal for an official QDRO prepared by the 401(k) administrator and stated that the matter would proceed only under Judge Stephen Lowney's designated expert known for financial fraud, thereby conditioning further proceedings on Petitioner's compliance with this demand.

2. Coercion to Transfer Vehicle Title and Surrender Vehicle Title Documents

During discussion of property division, Judge Stephen Lowney explicitly required Petitioner to immediately transfer and surrender the title documents for the vehicle at issue. Judge Stephen Lowney framed this as a non-negotiable condition for resolution of pending matters and indicated that failure to comply would result in continued adverse rulings and denial of relief sought by Petitioner.

3. Extortion of Minor Child Max Mars's Passport, Vaccination Records, and All Identifying Documents for Child Trafficking / International Abduction outside of the United States to Ukraine, Coupled with Threats of Vexatious Litigant Declaration and Denial of Court Access

Judge Stephen Lowney demanded that Petitioner surrender the minor child Max Mars's passport, vaccination card, and all other identifying and travel documents to enforce international abduction of Petitioner's son Max Mars outside of the United States to Ukraine - endangering life of Petitioner's son Max Mars due to ongoing war in that country. When Petitioner sought a custody review hearing, Judge Stephen Lowney conditioned any consideration of custody or visitation issues on immediate compliance with this demand. Judge Stephen Lowney expressly warned that continued resistance would result in Petitioner being declared a vexatious litigant, thereby barring him from filing any further actions or seeking relief in the California courts. This threat was made in direct response to Petitioner's requests for a custody review hearing, trial on the domestic violence restraining order, final trial on all issues, and bifurcation of marital status.

4. Denial of Custody Review Hearing, DVRO Trial, Final Trial, Bifurcation, and Settlement Conference as Leverage for Extortion

Petitioner requested an immediate custody review hearing, trial on the mutual domestic violence restraining orders, final trial on all remaining issues, and bifurcation of the marital status. Judge Stephen Lowney denied each request and removed the final trial and mandatory settlement conference from the calendar. Judge Stephen Lowney stated that these matters would not be heard unless and until Petitioner complied with the demands for the 401(k) account, vehicle title, and the minor child's documents. Judge Stephen Lowney further indicated that non-compliance would result in additional contempt proceedings and further malicious prosecution by the Court.

5. Additional Coercive Statements, Implicit Threats of Denial of Access to Court, Contempt and Further Malicious Prosecution

Throughout the hearing, Judge Stephen Lowney repeatedly framed Petitioner's requests for due process (custody review, evidentiary hearings, and trial) as contingent upon immediate surrender of the financial and custodial documents demanded. Judge Stephen Lowney stated that Petitioner's failure to provide the required documents and accounts would lead to the imposition of further pressure through the Court's contempt powers, denial of access to court, and further complication of proceedings. These statements, when viewed in the full context of the hearing, constitute coercion and extortion under color of law by conditioning fundamental constitutional rights (access to court, custody determination, and liberty) on Petitioner's compliance with the Court's extrajudicial demands for assets and documents - establishing pattern of extortion and racketeering under color of state law.

These excerpts are corroborated by the full audio recording and certified transcript, both of which are included as Exhibits B-14 and B-15 in the Consolidated Evidence Binder. The pattern of demands for Petitioner's retirement funds, vehicle title, and the minor child's essential documents - paired with explicit threats of vexatious litigant status, denial of court access, contempt, and further prosecution - establish a clear record of coercion, extortion and racketeering under color of state law.

Item	Page	Line	Timestamp	Key Statement	Material Fact / Clarification
1	25	19	[01:20:00]	MS. ROBERTS: The last issue is ... divide Mr. Mars' 401(k) ... the choice of an expert to draft the QDRO.	Financial extortion - 401(k): Court-appointed expert Barbara Strasen imposed on Petitioner's 401(k) division; Petitioner is coerced to pay her fees.
2	26	11	[01:22:15]	MR. MARS: Your Honor, I provided QDRO prepared by my 401(k) provider to Ms. Roberts, and filed it to the court for final trial, but for some reasons it was ignored.	Petitioner provided the official QDRO prepared directly by the 401(k) plan provider , which was rejected.
3	27	1	[01:23:31]	JUDGE STEPHEN LOWNEY: The court selects Barbara Strasen to prepare the process. Both parties are ordered to cooperate with Ms. Strasen. That was the order, and that is the order. Everybody is expected to comply with that order.	Judge Lowney explicitly rejects the official provider QDRO and enforces use of his court-appointed expert.

1	4	27	8	[01:23:31]	JUDGE STEPHEN LOWNEY: You have to - Ms. Strasen is the expert. The fee will be split between the two of you. You will pay half, and you will cooperate.	Direct judicial order coercing Petitioner to pay Strasen's fees and surrender control of the 401(k) QDRO process to the expert appointed by Stephen Lowney.
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7	5	24	25	[01:17:46]	JUDGE STEPHEN LOWNEY: So, Mr. Mars, once title is given to you by whatever bank is holding the loan, you must transfer title forthwith, which means immediately. Immediately.	Coercion to surrender vehicle title under threat of contempt of court.
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12	6	25	1	[01:17:46]	JUDGE STEPHEN LOWNEY: It will be a violation of the court order if you do not transfer the title once you receive it immediately.	Coercion to surrender vehicle title under threat of contempt of court.
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17	7	25	4	[01:18:21]	JUDGE STEPHEN LOWNEY: Within 24 hours of you having it in your hand you must transfer the title.	Coercion to surrender vehicle title under threat of contempt of court.
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21	8	19	6-9	[01:02:13]	MS. ROBERTS: I have sent Mr. Mars several emails that he was court-ordered to bring those documents to my office. Mr. Mars refuses to give up anything. His vaccination record, his green card, his passport.	Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents.
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9	20	3-5	[01:03:35]	JUDGE STEPHEN LOWNEY: You must comply with the orders. MR. MARS: Your Honor, my son will be abducted to Ukraine and will never return. There is a war. Max can die.	Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents. Threat to Max Mars's life due to international abduction outside the United States to Ukraine.
10	21	11-20	[01:07:00]	MR. MARS: What should I do if my son will die after international abduction, becoming a victim of the war in Ukraine? JUDGE STEPHEN LOWNEY: You are going to comply. The request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child. And you are ordered to comply.	Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents. Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine
11	19-20	1-27	[01:03:35]	JUDGE STEPHEN LOWNEY: We're talking about documents. You must turn them over. MR. MARS: Those orders were done by disqualified Judge Flint. JUDGE STEPHEN LOWNEY: Yes, and they're valid.	Extortion of child's passport and identity documents under threats of denial of access to court and malicious prosecution via contempt. Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine

1 **MR. MARS:** Those orders
2 were made against the
3 factual and legal basis of the
case.

4 **JUDGE STEPHEN**
5 **LOWNEY:** The orders
stand.

6 **MR. MARS:** I kindly
7 request to stay this order
8 until trial on opposing
DVROs will be heard.

9 **JUDGE STEPHEN**
10 **LOWNEY:** Denied. You
11 must comply with the
orders.

12 **MR. MARS:** Your Honor,
13 **my son will be abducted to**
14 **Ukraine** and will never
return. **There is a war.**
15 **Max can die.**

16 **JUDGE STEPHEN**
17 **LOWNEY:** I want you to
18 listen to the court. We have
19 just gone over a vexatious
20 litigant analysis. I've asked
21 for further briefing. And
22 I've asked to see all of the
conduct in this case
23 regarding filed motions.
24 What is also really relevant
25 to that designation and to
the court in general is when
26 you are ordered to do
27 something by the court, that
28 you comply - and that goes
with both parties - and you
are not complying.
It's not good.

1 **MR. MARS:** Your Honor, I
2 would love to comply, but
3 first **I need this matter to**
4 **be heard.**

5 **JUDGE STEPHEN**
6 **LOWNEY:** You don't
7 understand. So you do not
8 set conditions on when the
9 court orders are to be
10 complied with. You just
11 comply.

12 **MR. MARS:** Your Honor,
13 this order **endangers the**
14 **life of my son,** and the
15 **court denies me to hear**
16 **this matter.**
17 What should I do?

18 **JUDGE STEPHEN**
19 **LOWNEY:** The order is
20 valid. You must comply.

21 **MR. MARS:** Your Honor,
22 signature of **disqualified**
23 **Judge Towery, who also**
24 **was removed from court**
25 **like Flint,** cost my mom her
26 life, put her in terminal
27 condition, because
28 **respondent with signature**
of bribed Judge Towery
kicked 95-year-old senior
woman with disabilities
from home and caused her
death.

JUDGE STEPHEN
LOWNEY: Mr. Mars, you
have to comply.

12 19 9 [01:02:13]

MS. ROBERTS: He's in violation of the court order. So I'm asking if you will not move, to court sign to re-issue those.

Threat of re-issuance of child's passport and identity documents for child trafficking / international abduction of minor child Max Mars outside of the United States to Ukraine

13 21 11-20 [01:07:00]

MR. MARS: What should I do if my son will die after international abduction, becoming a victim of the war in Ukraine?

Extortion of child's passport and identity documents under threats of denial of access to court and malicious prosecution via contempt.

JUDGE STEPHEN LOWNEY: You are going to comply.

The request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child.

And you are ordered to comply.

Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine

14 14 15-16 [00:44:09]

MR. MARS: Is it possible to hear DVROs trial today?

JUDGE STEPHEN LOWNEY: No. And the request for a final trial date is denied.

Denial of DVRO trial and final trial on marital status as the leverage for extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars

15 15 9 [00:47:02]

JUDGE STEPHEN

LOWNEY: We are going to vacate the March 5th status conference. We are not going to set a trial.

Removal of status conference and refusal to set trial - blocking case resolution as the leverage for extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars

16 12-13 10-20 [00:37:02]

MR. MARS: Do I

understand correctly that we can bring this matter to a family status conference?

Denial of DVRO trial, custody review hearing, final trial and settlement conference used as the leverage of coercion to surrender custody rights and extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars

JUDGE STEPHEN

LOWNEY: We're not ready to do that. We have a heavily impacted trial calendar. The first full half day I have is June 17th at 9:00 a.m.

17 17 11 [00:53:54]

JUDGE STEPHEN

LOWNEY: None of them have a legal basis. ... If I don't grant this order, what will stop you from continuing to file requests for orders ...

Threat of vexatious litigant designation to deny access to court.

CERTIFICATION

I, Kostiantyn Mars, declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing Exhibit B is a true and accurate summary of material statements taken from the official transcript of the hearing held on February 7, 2024, before the Honorable Stephen Lowney in Case No. 22FL003144.

1 All quoted language appears verbatim from the official court transcript. The page numbers and
2 timestamps referenced in this Exhibit correspond to the professional transcript filed
3 concurrently herewith.

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5 Executed on April 8, 2026, at Austin, Texas.

6 DATED: April 8, 2026

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9 KOSTYANTYN MARS
10 Pro Se
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